



File No.: EXP202300523

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 26/07/2024, and based on the following

FACTS

FIRST: On 26/07/2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202300523, by virtue of which two administrative fines of €5,000 were imposed on the appellant for violations of Articles 9 and 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the aforementioned Regulation.

Furthermore, the resolution confirmed and made definitive the provisional measure imposed on the appellant consisting of removing the publication subject to complaint from their Facebook social media profile, and compliance with this measure had to be demonstrated the day after the notification of the resolution.

This resolution, which was notified to the appellant on 02/09/2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00177/2023, the following was recorded:

First: On 18/11/2022 at 11:35 hours, the respondent published on their Facebook profile (A.A.A.) the following message:

“(…)”

Alongside the publication, there are 5 images:

- Photograph of the face of (...) that would correspond to the complainant.
- Medical reports of the complainant. The following data is legible, among others:

o Name and surname: B.B.B.

o Patient's address: ***ADDRESS.1 or NIF: ***NIF.1

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o Emergency Discharge Report, dated ***DATE.1. Among its content is the “Reason for consultation”: (...)

- Health Declaration, dated ***DATE.2, issued by the forensic doctor stating: “(…)”

- Document addressed to (...) by the respondent. The document contains personal data of the complainant (name and surname, among others).

Second: On 17/01/2023 and 20/02/2024, this Agency accessed the Facebook profile of the respondent (A.A.A.), proving that the publication subject to complaint was not removed.

Third: Documents No. 3, 4, 5, and 6 submitted by the respondent in their written allegations to the proposed resolution are identical to those published on their Facebook social media profile (A.A.A.).

THIRD: On 30/09/2024, the appellant submitted to this Agency, in a timely manner, a recourse for reconsideration, basing it fundamentally on:

“1. On 24/05/2024 in my writing, I informed you of the hate crime with evidence (...). And that it rarely appears in any of the three medical reports accompanying your complaint. (...)

2. I declare myself insolvent as my economic situation is precarious (...) (...).

3. As you will see in the attached copy (...). Here are the inquisitors, racists, fascists, etc. (...)

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present recourse in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it is worth recalling that among the competencies attributed to this Agency is not the determination of whether or not a hate crime actually exists, but the assessment of whether it is...

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has produced or not a violation of the data protection regulations concerning personal data.

Regarding the insolvency situation alleged by the appellant, it should be noted that:

"According to the doctrine of the European Court of Human Rights ("ECHR"), the principle of proportionality in the sanctioning field is also incorporated in Article 1 of the First Additional Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms ("ECHR"), relating to the protection of property. Thus, the ECHR has considered, in its judgments of July 9, 2009 (Case Moon v. France), February 26, 2009 (Case Grifhorst v. France), January 11, 2007 (Case Mamidakis v. Greece), October 9, 2018 (Case Gyrlyan v. Russia), and January 31, 2017 (Case Boljevic v. Croatia), that in the sanctioning field, respect for the principle of proportionality recognized in Article 1 of the Protocol requires assessing the breach committed, the severity of the offense, and the fair balance between the demands of the general interest and the protection of fundamental rights. Likewise, it considers that there must be a reasonable proportionality relationship between the means employed and the ends pursued (ECHR judgment of May 14, 2013 - Case N.KM v. Hungary, paragraph 65). The ECHR also considers that, in the sanctioning field, the principle of proportionality requires, on the one hand, that the imposed sanction reflects the severity of the infringement and, on the other, that when determining the sanction and setting the amount of the fine, the individual circumstances of the specific case are taken into account (in particular, ECHR judgment of July 9, 2009 - Moon v. France, paragraph 51).

For these purposes, this party understands that the criteria emanating from the ECHR should serve as an interpretative element regarding the principle of proportionality in sanctioning matters, in accordance with the provisions of Article 10.2 of the Spanish Constitution."

However, in the present case, this Agency wishes to point out that there is no evidence nor has there ever been evidence that the insolvency circumstances alleged by the appellant are true. Thus, considering the circumstances listed in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, it is deemed proportional to impose an administrative fine of €10,000, without the new assertion made by the appellant undermining this decision as it is not supported by any evidence.

Therefore, the present allegations are dismissed.

III

Conclusion

Article 118.1 of the LPACAP establishes that: "When new facts or documents not included in the original file must be taken into account, they will be made available to the interested parties so that, within a period of no less than ten days and no more than fifteen, they may formulate allegations and present the documents and justifications they deem appropriate.

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Facts, documents, or allegations from the appellant will not be taken into account in the resolution of the appeals when they could have been submitted during the allegations phase but were not. The practice of evidence cannot be requested when its lack of execution in the procedure in which the contested resolution was issued is attributable to the interested party."

In the procedure PS/00177/2023, whose resolution is contested in this appeal, the appellant only made allegations regarding the proposed resolution. In these, they expressed the need to publish on their social media the documents containing personal data of the complainant in order to justify their complaint of racism against them, considering this Agency as "complicit" in the racist behavior of the complainant.

In the aforementioned resolution, this Agency responded to these statements indicating that "at no time has the principle of impartiality established in our legal system been violated in the present sanctioning procedure; since the sanctioning power exercised has been limited to objectively analyzing the facts reported by the complainant, as well as the evidence provided for that purpose.

Thus, as indicated in the Established Facts, it has been confirmed that the respondent published—and continues to publish—on their Facebook social media profile (A.A.A.) documents containing identifying and health-related personal data of the complainant without respecting what is established in Articles 9 and 6.1 of the GDPR. And not only that, but also the personal data of the image."

Furthermore, this Agency reiterates what was stated in the contested resolution regarding the measures, specifically, the obligation of the appellant to remove the publication subject to the complaint from the respondent's Facebook social media profile (A.A.A.).

Therefore, from the above, it is evident that, in the present appeal for reconsideration, the appellant has not provided new facts that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of this date, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

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Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having regard to the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 26/07/2024, in the file EXP202300523.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution is notified, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the

restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will be collected in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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